

		The Court GRANTS Plaintiff's request for judicial notice. The FAC does not allege Plaintiff voluntarily consumed alcoholic beverages to the point of intoxication knowing from the outset he must thereafter operate a motor vehicle. (See <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 899 [citation omitted].) The Court GRANTS Defendant/cross-complainant's Motion to Strike with respect to Plaintiff's request for punitive damages. A determination of whether the specific felonies alleged to have been committed by Defendant may ultimately establish the basis for attorney fees is not appropriate at this stage. The Court DENIES Defendant/cross-complainant's Motion to Strike with respect to paragraphs 16 and 18 and the allegations and prayer regarding attorney fees pursuant to Civil Code section 1021.4. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended pleading. Clerk to give notice.
7	Vasquez vs. Mercedes-Benz USA, LLC 30-2026-01559886-CU-BC-CJC	Demurrer to Complaint Defendant Mercedes-Benz USA, LLC's Demurrer to the Complaint is OVERRULED. Defendant is ORDERED to file its answer within 5 days. Plaintiff alleges sufficient facts to support her Song Beverly claims. Plaintiff alleges the vehicle was <i>purchased</i> with an "express written warranty." (Compl., ¶ 11.) Thus, Plaintiff has sufficiently alleged facts to support a claim the vehicle qualified as a "new motor vehicle" and the claim does not stem from any warranty provided from the original lease of the vehicle. (See <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 205 [vehicle sold with balance left on new car warranty not "new motor vehicle" unless new warranty issued with sale.] Clerk to give notice.
8	Choi vs. Oh 30-2026-01547737-CU-PO-CJC	Demurrer to Complaint Defendants David Byungik Oh and The Happier Church's Demurrer to Plaintiffs Yoon Suk Choi and Jea H. Kim aka Joshua Kim's Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend.